Response: Any time that tool kits or lockers of employees are to be inspected, the Employer agrees that, except in matters where there is reasonable cause to suspect criminal activity, a steward or the employee shall be given the opportunity to be present at any inspection of employees' lockers. For a general inspection where employees have had prior notification of at least a week, the above is not applicable.

47. Are Motor Vehicle Craft employees entitled to night differential when required to change their schedule for training?

    Response: Full-time Motor Vehicle Craft employees who participate in on-the-clock training are paid for the night differential they would have received, if any, had they worked their regularly scheduled hours.

48. How are Motor Vehicle Craft employees selected for training opportunities?

    Response: On a fair and equitable basis, consistent with service needs, with volunteers receiving first consideration.

49. What is the process for resolving Department of Transportation medical disputes?

    Response: An employee may appeal an adverse result of a certifying examination to the District Occupational Health Services office with a copy of the concern, without revealing the medical condition in question, to their immediate supervisor. If the physical is performed by a community based contract physician, review of the examination results will be done by the Senior Area Medical Director. If the Medical Director review agrees with the current examination, the employee may ask for an independent medical assessment by a physician jointly chosen by the Postal Service and the employee. The results of the independent review will stand as the final decision.

50. Is a Senior Area Medical Director (SAMD) a physician?

    Response: Yes.

51. What process is used to schedule physicals which are required by the Department of Transportation?

    Response: Department of Transportation physicals are scheduled by postal management, occur on the clock and are paid for by the Postal Service. Physicals are provided upon request by the Postal Service with a contract supplier.

52. A driver is instructed to report for an alcohol test and a drug test within two hours of an accident. Does the driver remain on the clock until the testing is completed? Is the driver required to take both the drug and the alcohol test?

    Response: The driver will remain on the clock until both tests are administered. The employee is required to take both tests.

53. In a return-to-duty situation, is the employee required to take both an alcohol and a drug test?